Though the Fundamental Right to Property under Part III has been abolished, the Part III still carries two provisions which provide for the guaranteed right to compensation in case of acquisition or requisition of the private property by the state. These two cases where compensation has to be paid are:

1. When the State acquires the property of a minority educational institution (Article 30); and
2. When the State acquires the land held by a person under his personal cultivation and the land is within the statutory ceiling limits (Article 31 A).

The first provision was added by the 44th Amendment Act (1978), while the second provision was added by the 17th Amendment Act (1964).

Further, Articles 31A, 31B and 31C have been retained as exceptions to the fundamental rights.

EXCEPTIONS TO FUNDAMENTAL RIGHTS

1. Saving of Laws Providing for Acquisition of Estates, etc.

Article 31A[16] saves five categories of laws from being challenged and invalidated on the ground of contravention of the fundamental rights conferred by Article 14 (equality before law and equal protection of laws) and Article 19 (protection of six rights in respect of speech, assembly, movement, etc.). They are related to agricultural land reforms, industry and commerce and include the following:

1. Acquisition of estates[17] and related rights by the State;
2. Taking over the management of properties by the State;
3. Amalgamation of corporations;
4. Extinguishment or modification of rights of directors or shareholders of corporations; and
5. Extinguishment or modification of mining leases.

Article 31A does not immunise a state law from judicial review unless it has been reserved for the president's consideration and has received his/her assent.

This Article also provides for the payment of compensation at market value when the state acquires the land held by a person under his/her personal cultivation and the land is within the statutory ceiling limit.

2. Validation of Certain Acts and Regulations

Article 31B saves the acts and regulations included in the Ninth Schedule[18] from being challenged and invalidated on the ground of contravention of any of the fundamental rights. Thus, the scope of Article 31B is wider than Article 31A. Article 31B immunises any law included in the Ninth Schedule from all the fundamental rights whether or not the law falls under any of the five categories specified in Article 31A.

However, in the *Kesavananda Bharati* case[18a] (1973), the Supreme Court rules that the acts and regulations that are included in the Ninth Schedule are open to challenge on the grounds of being violative of the basic structure of the condition. This was later clarified by the court in the *Waman Rao* case[18b] (1980) wherein it held that the various acts and regulations includes in the Ninth Schedule after 24 April, 1973 (date of judgement in the Kesavananda Bharati case) are valid only if they do not damage the basic structure of the constitution.